June 22nd, 2026

The Honorable Kathy Hochul
Governor of New York State
New York State Capitol Building
Albany, NY 12224

Re: VETO REQUEST – New York A9349B

Dear Governor Hochul:

On behalf of the Association of National Advertisers ("ANA"), we respectfully ask that you **VETO** A9349B ("Bill").[1] The ANA is the definitive voice of the marketing industry. Since 1910, we have set and advanced the agenda for marketing transformation, connecting over 1,600 member companies to an influential global network, insights and resources that drive growth. Our members represent 20,000 brands and $400 billion in annual marketing investment. Through industry-leading research, the CMO Growth Council, and our proprietary Growth Agenda and Practices, the ANA empowers marketers to shape the future of marketing and create lasting impact for their organizations and the industry.

We have a number of concerns with A9349B, including several that we outline below. Consumers deserve meaningful protections supported by reasonable laws and industry policies. We are concerned, however, that A9349B as passed by the New York Legislature could be interpreted to apply to business-to-business contexts rather than applying only to business-to-consumer transactions. The Bill also includes broad rulemaking authority and could be read to permit a private right of action, both of which could invite inconsistent enforcement that hinders robust market competition.

- **A9349B could be construed to extend beyond consumer-facing pricing practices.** Although the Bill appears intended to regulate pricing for consumer-facing transactions involving natural persons, several provisions create ambiguity regarding the Bill's scope. For instance, "surveillance pricing" is defined to mean pricing "set completely or in part by an algorithm that uses personal data to offer different prices to different *customers*."[2] Yet the Bill does not define "customer," which could be interpreted to reach business customers and other commercial relationships beyond the traditional business-to-consumer context. Although the Bill defined "consumer," the term is defined to include purchases made "from any entity domiciled in New York State," which similarly could be read to extend the Bill's application to business-to-business commercial activity.[3] Together, these provisions create uncertainty for businesses that rely on audience, market, or other personal data to support routine business-to-business advertising and pricing practices. The unintended result will be to chill legitimate practices that allow businesses to compete effectively in the modern economy.

[1] New York A9349B (2025-2026 Leg. Sess.), located here [*hereinafter*, "Bill"].
[2] Bill at Sec. 1, §349-a.1(f).
[3] *Id.* at Sec. 1, § 349-a.1(c).

ANA | 2020 K Street, NW | Suite 660 | Washington, D.C. 20006 | 202.296.1883 | www.ana.net

- **The Bill grants broad, undefined rulemaking authority that could create confusion.** A9349B authorizes the New York Attorney General ("NY AG") to promulgate rules to implement the Bill's requirements without establishing any meaningful limits on the scope of that authority.[4] For instance, the Bill provides no indication of the types of issues that may be addressed through rulemaking. Such an open-ended delegation exposes businesses to significant uncertainty and opens the door for the Bill's requirements to extend well beyond the New York Legislature's intent.

- **A9349B leaves open the possibility of a private right of action.** The Bill appropriately vests enforcement authority of alleged violations with the NY AG.[5] However, the Bill's enforcement provisions do not clearly state that the Bill does not provide for a private right of action. A private right of action would create a complicated compliance system without providing tangible benefits for consumers. Instead, a private right of action would benefit opportunistic trial lawyers and plaintiff's firms focused on enforcing technical violations rather than combatting actual consumer harm.[6] Such an enforcement regime would hinder responsible and legitimate practices that drive competition due to the threat of exorbitant and unpredictable legal costs. Businesses of all sizes may decline to operate in New York to avoid the risk that accompanies a potential private right of action, harming New York consumers, businesses, and the economy alike.

While we agree that New Yorkers deserve privacy protections that are supported by reasonable laws and responsible industry practices, A9349B would codify unclear provisions that could be extended well beyond what the New York Legislature intended. Such a result may unintentionally hinder competition and create marketplace confusion. We respectfully urge you to **VETO** A9349B.

* * *

Thank you for your consideration of this request.

Sincerely,

Christopher Oswald
Group Executive Vice President & Head of Law, Ethics, and Government Relations
Association of National Advertisers

---

[4] *Id.* at Sec. 1, § 349-a.5.
[5] *Id.* at Sec. 1, § 349-a.4.
[6] A select few attorneys benefit disproportionately from private right of action enforcement mechanisms in a way that dwarfs the benefits that accrue to the consumers who are the basis for the claims. For example, a study of 3,121 private actions under the Telephone Consumer Protection Act ("TCPA") showed that approximately 60 percent of TCPA lawsuits were brought by just forty-four law firms. Amounts paid out to consumers under such lawsuits proved to be insignificant, as only 4 to 8 percent of eligible claim members made themselves available for compensation from the settlement funds. U.S. Chamber Institute for Legal Reform, *TCPA Litigation Sprawl* at 2, 4, 11-15 (Aug. 2017), located here.